

8th Cause of Action - UCL Violation(s)

In order to state a claim for a violation of the UCL, Plaintiff must allege that Defendant committed a business act or practice that is fraudulent, unlawful, or unfair. (*Buller v. Sutter Health* (2008) 160 Cal.App.4th 981, 986.) A cause of action for violating this statute “borrows” actionable conduct and makes it independently actionable under the unfair competition law. (*Smith v. State Farm* (2001) 93 Cal.App.4th 700, 718.) As all of the other 8 causes of action stand and were not challenged, the FAC properly alleges a UCL violations cause of action by Plaintiff individually.

Here, the FAC is brought solely in Plaintiff’s individual capacity and not on behalf of a class. Therefore, Defendants’ demurrer on that ground lacks merit. OVERRULED.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2601155	SMITH, AN INDIVIDUAL VS SOUTHERN CALIFORNIA GAS COMPANY	MOTION TO STRIKE 1ST AMENDED COMPLAINT OF AMBER NICOLE SMITH, AN INDIVIDUAL BY SOUTHERN CALIFORNIA GAS COMPANY

Tentative Ruling: Granted.

No opposition filed.

The following portions of the First Amended Complaint are hereby stricken:

- a. Paragraph 31, in its entirety (8:10-12);
- b. Paragraph 32, item “d” (8:19);
- c. Paragraph 39, in its entirety (9:13-17);
- d. Paragraph 41, item “d” (9:26);
- e. Paragraph 49, in its entirety (10:27-11:5);
- f. Paragraph 52, item “d” (11:18);
- g. Paragraph 3 of the Prayer for Relief (11:27).

Moving party to provide notice pursuant to CCP 1019.5.

This action arises out of a motor vehicle accident. On February 11, 2026, Plaintiffs Amber Nicole Smith and Sylvia Perfecto (“Plaintiffs”) filed a Complaint against Defendants Southern California Gas Company (“SoCal Gas”) and Ernesto Partida-Granados (“Partida-Granados”) (together “Defendants”) for: (1) negligence (against Partida-Granados); (2) negligent entrustment (against SoCal Gas); and (3) negligent hiring, supervision, and/or retention (against SoCal Gas).

The operative 1st Amended Complaint was filed on May 29, 2026.

SoCal Gas moves to strike Plaintiffs claim for punitive damages, arguing Plaintiffs’ fail to allege facts showing fraud, oppression, or malice.